

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

William Montgomery Cerf

Case Number: 25-01090

vs.

Respondent

UBS Financial Services Inc.

Hearing Site: New York, New York

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant William Montgomery Cerf (“Claimant”): David L. Goldberg, Esq., and Zachary M. Schmitz, Esq., Katten Muchin Rosenman LLP, New York, New York.

For Respondent UBS Financial Services Inc. (“Respondent”): Omar Perez, Esq., UBS Business Solutions US LLC, Nashville, Tennessee.

CASE INFORMATION

Statement of Claim filed on or about: May 29, 2025.

Claimant signed the Submission Agreement: May 29, 2025.

Statement of Answer filed by Respondent on or about: July 21, 2025.

Respondent signed the Submission Agreement: July 21, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent did not oppose Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 2269426) requested expungement of all references to Occurrence Number 2298743 from the CRD registration records.

In the Statement of Answer, Respondent requested that all costs and fees be assessed against Claimant.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On September 22, 2025, Claimant advised that the customers in Occurrence Number 2298743 ("Customers") were served with a copy of the Statement of Claim, although not within 10 days of filing the Statement of Claim and provided proof of service.

On September 22, 2025, Claimant advised that the Customers were served with a copy of the Statement of Answer, although not within 10 days of filing the Statement of Answer and provided proof of service.

On September 25, 2025, one of the Customers submitted a written statement and did not oppose the expungement request.

The Panel conducted a recorded hearing by videoconference on October 31, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared videoconference at the expungement hearing. Respondent did not appear at the expungement hearing and as stated in the Statement of Answer, did not oppose the request for expungement.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel reviewed the settlement documentation related to Occurrence Number 2298743, considered the amount of payment made to any party to the settlement, and considered other relevant terms and conditions of the settlement. The Panel noted that the settlement was not conditioned on any party to the settlement not opposing the expungement request and that Claimant did not contribute to the settlement amount.

The Panel relied upon the following documentary or other evidence: Exhibits 14, 16, 17, 24, 26, 27, 28 and 29, which show the disclosures of the investments and the written admission of customer specifically stating that Claimant did nothing wrong.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, and any post-hearing submissions, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2298743 from registration records maintained by the CRD for Claimant William Montgomery Cerf's (CRD Number 2269462) with the understanding that, pursuant to Rule 2080, Claimant William Montgomery Cerf must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative findings of fact:

The claim, allegation, or information is factually impossible or clearly erroneous; and the claim, allegation, or information is false.

The Panel has made the above findings based on the following reasons:

Claimant did not do any wrongdoing. Evidence was accepted by the Panel which included the fact that the customer is still utilizing Claimant for financial advice and emails were accepted into evidence wherein customer states that Claimant did nothing wrong. Moreover, customer was a sophisticated investor with diversified holdings. The investments offered by Claimant to the customer were clearly suitable. Additionally, the documented evidence clearly shows and discloses the risks of the investment. Claimant also credibly testified that he regularly and clearly communicated the risks of the investment. Claimant also credibly testified that he himself invested in the strategy and in fact the strategy worked for many years. The subject investment only represented a small fraction of customer's wealth.

The Panel also reviewed the settlement entered into by customer and Respondent. Claimant did not participate in the settlement agreement and did not contribute anything financial or otherwise to the settlement. The Panel unanimously concludes that Claimant did nothing wrong, that any allegations by customer against Claimant are clearly false, and that Claimant is clearly entitled to expungement concerning Occurrence Number 2298743.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
--------------------------	---------------

**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm that employed the associated person at the time of the events giving rise to the dispute. Accordingly, as a party, Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrators, including a pre-hearing conference with the Arbitrators, which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: September 3, 2025	1 session

One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: October 31, 2025	1 session

Total Hearing Session Fees	= \$ 3,450.00
----------------------------	---------------

The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Mauricio Arcadier	-	Public Arbitrator, Presiding Chairperson
Steven H. Vogel	-	Public Arbitrator
Frederick Ramos	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm, pursuant to Article 7507 of the Civil Practice Law and Rules, that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Mauricio Arcadier

Mauricio Arcadier
Public Arbitrator, Presiding Chairperson

11/13/2025

Signature Date

Steven H. Vogel

Steven H. Vogel
Public Arbitrator

11/13/2025

Signature Date

Frederick Ramos

Frederick Ramos
Public Arbitrator

11/13/2025

Signature Date

Awards are rendered by independent arbitrators who issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

November 13, 2025

Date of Service (For FINRA Dispute Resolution Services use only)